

STATE OF NEW YORK

4470--A

Cal. No. 275

2025-2026 Regular Sessions

IN SENATE

February 5, 2025

Introduced by Sens. MAYER, RHOADS -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the executive law, in relation to requiring training for police officers on discharging a firearm at a moving vehicle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph 2 of paragraph (d) of subdivision 4 of section
2 840 of the executive law, as added by section 1 of part ZZ of chapter 55
3 of the laws of 2019, is amended to read as follows:
4 (2) The model law enforcement use of force policy shall include, but
5 is not limited to:
6 (i) information on current law as it relates to the use of force by
7 police and peace officers;
8 (ii) guidelines regarding when use of force is permitted;
9 (iii) requirements for documenting use of force;
10 (iv) procedures for investigating use of force incidents;
11 (v) guidelines regarding excessive use of force including duty to
12 intervene, reporting, and timely medical treatment for injured persons;
13 (vi) standards for failure to adhere to use of force guidelines;
14 (vii) training mandates on use of force, conflict prevention, conflict
15 resolution and negotiation, de-escalation techniques and strategies,
16 including, but not limited to, interacting with persons presenting in an
17 agitated condition; ~~and~~
18 (viii) prohibited uses of force; and
19 (ix) best practices, policies, and guidelines regarding the discharge
20 of a firearm at a moving vehicle.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD08447-02-6

1 § 2. Section 840 of the executive law is amended by adding a new
2 subdivision 9 to read as follows:

3 9. The council shall, in addition:

4 (a) Develop, maintain and disseminate written policies and procedures
5 regarding use of force by police officers specifically with respect to
6 the discharge of a firearm at a moving vehicle.

7 (b) Recommend to the governor rules and regulations with respect to
8 the establishment and implementation on an ongoing basis of a training
9 program for all current and new police officers as part of required
10 minimum basic training, regarding the policies and procedures estab-
11 lished pursuant to this subdivision, along with recommendations for
12 periodic retraining of police officers.

13 § 3. This act shall take effect on the one hundred eightieth day after
14 it shall have become a law.